

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS MARCH TERM, A. D. 2025.

BEFORE HER HONOR: SIE-A-NYENE G. YUOH CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON-JOHNSON..... ASSOCIATE JUSTICE

Sam Childenyou Howard, Mr. Hafford M. Howard and)
Lawrence Childenyou et al., of the City of Monrovia,)
Liberia Appellants) Appeal
Versus)
Abdul Jalloh of the City of Monrovia, Montserrado)
County, Liberia Appellee)
GROWING OUT OF THE CASE:)
Abdul Jalloh of the City of Monrovia, Montserrado)
County, Liberia Plaintiff) Action of
Versus) Ejectment
Sam Childenyou Howard, Mr. Hafford M. Howard and)
Lawrence Childenyou et al., of the City of Monrovia,)
Liberia Defendants)

Heard: March 19, 2025

Decided: August 14, 2025

MR. JUSTICE KABA DELIVERED THE OPINION OF THE COURT

The appellee/plaintiff, Abdul Jalloh, filed an ejectment action against the appellants/defendants, Sam Childenyou Howard, Mr. Hafford M. Howard, Lawrence Childenyou, et al., in the Sixth Judicial Circuit, Montserrado County, Liberia. He claims ownership of 4.26 lots of land in Upper Caldwell, Montserrado County, Liberia. The seven-count complaint alleges that he is the lawful owner of the land, acquired through a legal purchase from the Intestate Estate of John C. A. Gibson, II, via its administrator, John C. A. Gibson, III. It states that the appellants are aware of his ownership but are wrongfully and unlawfully withholding the property; that they damaged his newly constructed fence, causing him a loss; that he verbally notified them multiple times to vacate and return the property, but they refused; and that, as a result of their wrongful withholding, he seeks general damages exceeding US\$50,000.00.

The appellants filed a fifteen-count response asserting that the appellee's grantor does not own land in the area where the appellee is claiming. They argued that the appellee is a Fula from Guinea and has not provided any evidence to prove his Liberian citizenship, so he cannot own real property in Liberia. They stated that the letters of administration, which the appellee's grantor relied on to manage his estate, expired on June 18, 2013, and were not renewed by the Probate Court. They further argued that the deed executed by the appellee's grantor does not specify the year the property was sold to the appellee. Because of flaws in the deed and the invalidity of the letters of administration, they claimed the complaint is vague and unclear. They alleged that the appellee attempted to wrongfully, illegally, unlawfully, and forcibly take their property due to his economic power. The appellants also stated that their brother, co-appellant Mr. Hayford Mulbah Howard, legally purchased the land in 2012 from the rightful owner, Joseph Chideryou, and a deed was issued to him, which has been properly probated and registered according to the law. They asserted that the appellee is criminally fencing their brother's land without his consent, despite several attempts to stop this illegal fencing, all of which have failed. They confirmed that the land occupied by the appellants is the rightful and legitimate property of their brother, Mr. Hayford Mullah Howard, who is one of the co-appellants. They concluded that the appellee's complaint is unfounded, lacks legal validity, and should be dismissed.

The appellee filed a fourteen-count reply to the appellants' answer, asserting that the party who alleges a fact bears the burden of proving it; that the mere claim by the appellants that the appellee is not a citizen is insufficient without evidence, and the burden to produce such evidence rests on the appellants who make the claim; that the assertion that the appellee's grantor's deed has two meets and bounds is false, misleading, and unsupported by proof, as the total land owned by the grantor is 12.5 acres, and the appellee only acquired 4.26 acres of the property. Therefore, the appellee's failure to mention buildings on the land does not render the deed fraudulent.

After disposing of the pretrial motion, the trial court ordered the case to be decided by a jury. During the trial, the appellee presented three regular witnesses and one rebuttal witness, while the appellants also presented three regular witnesses.

The appellee's first witness, Abdul Jalloh, testified that he purchased 4.26 lots of land from Mr. John C. A. Gibson, III, on June 22, 2013, and built a fence around his property, but the appellants illegally entered the property, broke his fence, and took possession of the property. He further testified to his administrator deed, letters of administration, court decree of sale, and his grantor's deed, which were all marked by the court and admitted into evidence.

The appellee's second witness, Mohammed Kaba, testified that the appellee acquired the property from Mr. Gibson in 2013, was present when the deed for the property was executed, and witnessed the execution of the deed. He also testified about the deed, the letter of administration, and the court decree of sale. He stated that in 2015, the appellee complained to John C. A. Gibson, III, the appellee's grantor, that some men had broken his fence, and Mr. Gibson instructed him (the witness) to go with the appellee to the property. The witness further testified that upon arrival, he saw Ishmail Howard and Lawrence Chidenyou, and he decided to ask why they had broken the fence. Ishmail Howard then took a cutlass and hit his hat; he called Mr. Gibson and told him what had happened, and Mr. Gibson advised them to take the matter to court.

The appellee's third witness, Ben Gailor, testified that the appellee hired his services to construct a fence around property around Sand Beach, Upper Caldwell, Montserrado County. He further testified that after constructing the fence around the plaintiff's property, it was broken down by a yellow machine at the time they were trying to lay the profile on the plaintiff's land; however, he did not know the operator of the yellow machine. With this witness, the appellee rested with the production of witnesses.

For their part, the appellants presented three regular witnesses. The first witness, Hayford Howard, testified that he purchased his 5.0 acres of land in 2012 from Mr. Joseph Chidenyou and that he was issued both a warranty deed and a mother deed. He stated that his grantor, Joseph Chidenyou, died in 2017. The witness admitted that the appellee constructed a fence around part of the property but denied removing the appellee's fence. He added that part of the fence still remains, except for a section on the west side of the land that was broken down by water. Howard testified that when he acquired the land, it was a forest. He mentioned that during the survey of his property, only one person had land nearby, but he was unsure if that person was present during the survey. Howard denied using a yellow machine on the disputed property, explaining that before the appellee started building a fence around the property, he was already in possession and was laying a foundation. He

also testified regarding his deed and his grantor's deed, both of which were marked by the court.

Appellants' second regular witness, Lawrence Chidenyou, testified that his late father sold 5.0 lots of land to Mr. Hayford Howard in 2012. He said his father issued Mr. Howard a deed and also gave him a copy of the mother deed. He also testified that he was one of the witnesses to the co-appellant Howard's title deed. He said when his father sold the land, there was no fence around the property, and he said his father died in 2017.

Appellants' third witness, Ishmail Howard, testified that Mr. Mohammed Kaba and others went to the site of the disputed property and destroyed Mr. Howard's foundation. In his testimony, he denied hitting Mohamed Kaba with a cutlass on his face cap. He said he had no knowledge of a yellow machine breaking down the appellee's fence. He further testified that at the time he was constructing the foundation, no fence was around the disputed property. Although the witness denied that there was a fence around the property when they went to construct a foundation, he later admitted that there were bricks mounted at the back of the property, which was not a complete fence. He said the bricks mounted at the back were not there when they started building the foundation. With this witness, the appellants rested with the production of evidence.

The appellee called one rebuttal witness, Mr. John C. A. Gibson, III, who is the administrator of the Intestate Estate of the late John C. A. Gibson II and also the appellee's grantor. The witness testified that when he received information from the appellee that his fence had been damaged, he called Mohammed Kaba to go there because he was somewhat busy; that he arrived at the property later that same day and saw that a yellow machine had just left the scene; that he also observed that Peabodys/Chidenyou people were present around the property; and that he noticed the appellee's fence was broken.

During cross-examination, the rebuttal witness testified that he is not aware of any other land sellers in the disputed area, except for the Peabodys/Chidenyou, who allegedly encroached on the property. He stated that the Gibson estate owns 325 acres of land in the Caldwell area, acquired by Joseph P. Gibson, the second Vice President under President James S. Payne, who was then the President of Liberia. In his testimony, he noted that the Peabodys/Chidenyou people do not own any land in the disputed area; rather, it was his grandfather who gave the Chidenyou a piece of land to squat on, and that is where the Chidenyou built a church.

After the parties rested with the production of evidence, the trial judge charged the jury, who then retired to their room of deliberation and subsequently returned with a unanimous verdict of liable against the appellants. The appellants filed a motion for a new trial, which was heard and denied by the court. The trial court subsequently affirmed the

unanimous verdict and entered a final ruling adjudging the appellants liable and ordering that the appellants be ousted and ejected from the disputed property and the appellees be placed in complete and unrestricted possession thereof.

In response to this final ruling, the appellants entered an exception and announced an appeal to this Court of *denir resort*.

During the appeal hearing, the counsel representing the appellants, with permission from this Court, submitted a statement to the record indicating that there is no bill of exceptions in his file. He explained that he had inquired with the previous lawyer who represented the appellants in the trial court about the bill of exceptions, but that lawyer was also unable to locate it in his records. Additionally, he searched the original case file at the trial court and found no bill of exceptions. He however stated that, since the appellant's brief has been filed, he was ready to argue the case. The appellee's counsel raised no objection to this submission. This Court then decided to review the records and proceed to make a comprehensive decision in the matter.

Before we examine the substantive issue, we must first determine whether, under the facts and circumstances, we are authorized to hear and decide the appeal. A review of the minutes from the hearing in this matter shows that the appellants are not claiming that a bill of exceptions was not filed, but that he did not find a copy of the bill of exceptions in the case file. When he approached the previous counsel for the appellants to inquire about the whereabouts of the bill of exceptions, the said counsel acknowledged that he had filed the bill of exceptions but could not locate his copy. The counsel for the appellees also admitted that he did not have a copy of the bill of exceptions in his file. However, we note that the appellee's counsel did not file a motion to dismiss the appeal before the trial court for failure to file a bill of exceptions, nor did he raise such an issue before this Court. The position of the appellee's counsel is that, since the appellants' counsel filed a brief and expressed willingness to proceed with the hearing, he did not object to the same.

This Court has held that a party who should act but fails to do so suffers waiver and laches. *LEC v Varpilah* 37 LLR 664, 672 (1994). The appellee's failure to file a motion to dismiss before the trial court, along with the trial court's approval of the appeal bond and the service and filing of the notice of completion of appeal without objection from the appellees, clearly demonstrates that the appellant did file a bill of exceptions, especially when considering the parties taxing the records. Conversely, the appellee's failure to timely file a motion to dismiss the appeal for failure to file a bill of exceptions constitutes a waiver; therefore, the appellees suffer from laches, particularly given that actions following the filing of the bill of exceptions were performed by both the parties and the court. Since all parties agree that this matter should be decided based on their respective briefs, and considering that the purpose of our procedural code is to ensure the just, speedy, and inexpensive resolution of every case before the court, Civil Procedure Law Rev. Code 1:1.4, this Court will now proceed to address the parties' contentions as outlined in their briefs.

This having been said, and after reviewing the parties' briefs, the issues that are determinative of this appeal, as argued by the parties in their respective briefs, are as follows:

Did the appellee prove his case by the preponderance of the evidence produced?

Did the trial judge err in confirming and affirming the jury verdict without *sua sponte* ordering an investigative survey?

It is the law that any person with a lawful claim to the possession of real property can file an ejectment action against anyone who wrongfully withholds possession of it. Such an action can be initiated when there is a dispute over the title to the property as well as the right to possess it. *Civil Procedure Law Rev. Code 1:62.1*. In an ejectment case, the plaintiff must succeed based on the strength of their title, not on the weaknesses of the defendant's title. *Donzo v Tate* 39 LLR 72, 74 (1998). To support the appellee's claim of ownership as alleged in the complaint, the appellee attached a 2014 administrator's deed from John C.A. Gibson, III to Abdul K. Jalloh covering 4.26 lots of land; a certified copy of a 1942 warrant deed

from John C.A. Gibson, I to John C.A. Gibson II covering 12.5 acres of land; and letters of administration along with a court decree of sale issued by the Monthly and Probate Court to John C.A. Gibson, III, authorizing him to dispose of ten (10) acres of land. During the hearing, the appellee's first witness, Abdul Jalloh, testified about the ownership of the disputed property and referenced all the documents annexed to his complaint, which the court marked and admitted into evidence to establish his ownership. The appellee's second witness supported Abdul Jalloh's testimony, confirming that the appellee bought the property from Mr. John C.A. Gibson, III, and constructed a fence, which was later broken down by the appellants. The rebuttal witness, Mr. John C.A. Gibson, III, who is also the grantor of the appellee, testified that the appellee owned the property.

In their brief, the appellants argued that the appellees failed to prove their chain of title to the disputed property and that the deeds presented by the appellees are fraudulent. They also stated that the appellee's grantor's deed describes a lot or parcel of land but simultaneously claims to convey 12.5 acres of land, which is impossible. Furthermore, the certified copy of the appellee's grantor's deed shows that it was probated and registered by the Monthly and Probate Court for Montserrado County in 1942, even though there was no Monthly and Probate Court in Montserrado County at that time.

The records show that the appellants' response to the appellee's complaint addressed all relevant issues. After evidence was introduced during the trial and factual issues of fraud were presented to the jurors, all testimonies and documentary evidence were provided to them for their consideration in the deliberation room. After reviewing the testimonies and documents, the jurors reached a unanimous verdict of liability against the appellants. In *Constance et al v Ajavon et al*, 40 LLR 295, 305 (2000), this Court held that only the jury can examine and review the evidence presented by the parties, determine the weight and credibility of that evidence, and decide the verdict based on it. In *Insurance Co. of Africa et al v Fantastic Store*, 32 LLR 366, 384 (1984), this Court held that it is the duty of the empaneled jury to evaluate the probative value of the evidence, assess credibility, and determine which evidence carries more weight.

The jurors are the triers of facts, and their role is to decide the weight and credibility of the evidence and testimony presented by the parties, as they are best positioned to determine the truthfulness of the witnesses. It is also an established law that issues of fact concerning allegations of fraud made by one party and denied by the other, particularly regarding alterations, handwriting, signatures, and account documents, are matters for the jury and not the judge. A judge errs if he determines whether the accused party committed fraud. When witnesses have testified to allegations of fraud in a jury trial, the issue becomes one for the jury to decide, not for the judge to rule on as a matter of law. *Knuckles v. TRADEVO et al.*, 40 LLR 511, 525 (2001).

The fraudulent issues raised by the appellants, as previously discussed in this opinion, are: 1) that the appellee's grantor's deed refers to the property as a parcel of land and contradictorily as 12.5 acres of land. In the appellant's view, a parcel of land cannot be the same as 12.5 acres; 2) that the metes and bounds in the appellee's grantor's deed differ from those in the appellee's deed; 3) that in 1942, when the appellee's grantor's grantor supposedly acquired title to the property, the probate court at that time was not known as the Monthly and Probate Court, as appears on the face of the deed.

Considering these issues, this Court disagrees with the appellants' claim that the reference in the appellee's grantor's deed to a parcel of land cannot be equivalent to the 12.5 acres of land granted to the appellee by the same deed. This Court states that it is basic grammar to refer to any amount of land that is joined together as a parcel of land. The word "parcel" does not specify the size of the land, but rather it refers to a piece of real property that is considered a single unit. Therefore, the Court cannot attribute fraud to this reference in the appellee's deed and agrees with the jury's findings that it does not constitute fraud. The Webster Dictionary defines "parcel" as a tract or plot of land.

Relative to the second assignment of fraud by the appellants, this Court takes judicial notice of the historical fact that, in 1942, the name of the

Probate Court was, and still remains, the monthly and probate court for Montserrado County. The Court is at a loss as to how the appellants arrived at the conclusion that the court had a name contrary to the Monthly and Probate Court as it appears on the face of the appellee's grantor's deed. It is the law in this jurisdiction that evidence is the vehicle that transforms an allegation into proof; in the absence of evidence, an allegation cannot and ought not to be considered as proved. Only evidence alone will enable a court to decide with certainty the matter in dispute. *Cooper et al v Cooper Estate et al* 39 LLR 750, 757 (1999); *Civil Procedure Law Rev. Code 1:25.5*. In the instant case, while the appellants alleged that the probate court carry a name other than that which appears on the appellee's grantor's grantor's deed, he however, failed to produce evidence either as an exhibit attached to their answer or as instrument or oral testimonies presented to court during the hearing of the matter. The burden of proof rests on the party who alleges a fact..." *Civil Procedure Law Rev. Code 1:25.5*. The Court says that it was not error on the part of the empaneled jury to find in favor of the appellee.

Considering the last allegation of fraud made by the appellants, we take judicial notice of the case file. We observe that neither of the party's pleadings includes an allegation that the disputed property is different, nor did any of the parties requested for or the court itself orders an investigative survey. In an action of ejectment, an investigative survey may be ordered by the trial court where the parties alleged in their pleadings that their deeds are not referring to one and the same property, or where either or all of the parties request, or the court on its own orders an investigative survey before or during trial. The parties not having raised the issue of the conduct of an investigative survey in their respective pleadings or in an application made to the trial court before or during trial, this Court cannot entertain or consider this issue raised for the first time before it. In a similar case, *Iman Isamail Sesay v. Martha G. Gweh, by and through her Attorney-in-Fact, Mr. D. Morgan Paye, Supreme Court Opinion, October Term, A.D. 2019*, appellant/Iman argued in his brief that "while filing his answer to the appellee's complaint he discovered that his grantor's title deed described the appellee's grantor as an adjoining party; that because appellee could not locate her property, she decided to claim appellant/Iman's property and

further alleged that there was no opportunity provided him to conduct an investigative survey to identify the property in question". In addressing his concern on appeal, this Court held that "request for investigative survey is a pre-trial requirement that should have been made by appellant or appellee before the commencement of full trial. The appellant's neglect and failure to pursue this path rendered this Court powerless to aid him." The Court in Iman's case ordered the appellee to be put in possession of the property described in the metes and bounds of her title deed with the aid of a court appointed licensed surveyor. This case presents similar factual scenario and hence the principle adopted in that case must similarly be applied to this case. It is trite law that issues not raised during the trial cannot at first instance be raised before the Supreme Court; hence, Counsellor David Katia demonstration of the lack of knowledge of this elementary principle of law is hereby fined the amount of United States Five Hundred Dollars (US\$500.00) to be paid within 72 hours as of the rendition of the Judgment of this opinion.

WHEREFORE AND IN VIEW OF THE FOREGOING, the final ruling of the Sixth Judicial Circuit, Civil Law Court, Montserrado County is hereby affirmed, with modification that the appellee be placed in complete and unrestricted possession of his property based on the metes and bounds of his title deed pleaded with the aid of a court-appointed licensed surveyor. The Clerk of this Court is ordered to send a Mandate to the court below, commanding the presiding judge to resume jurisdiction over this case and give effect to this Judgment of this Opinion. Costs are ruled against the appellants. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR DAVID KATIA APPEARED FOR THE APPELLANTS. COUNSELLOR EDUARDO BLAMO NYANTEE OF THE TUAN WREH LAW FIRM APPEARED FOR THE APPELLEE.